

HIPAA Confidentiality Agreement

HIPAA Confidentiality Agreement

NAME

First Name Natalie		Last Name Redman	
AxisCare Caregiver ID 14	Hire Date Jul 10 2015	Termination Date Mon Day Year	
Caregiver Class ☒ Administrator ☐ Certified Nursing Assistant ☒ Licensed Practical Nurse ☒ Open Visit Opt Out ☐ Personal Care Attendant ☐ Registered Nurse ☐ Specially Trained Attendant			

HIPAA:

I. HIPAA stands for Health Insurance Portability and Accountability Act. This act was passed in 1996 to protect consumers and their private health information. You have been provided a copy of HIPAA and this agreement serves to acknowledge that receipt.

II. In-home care is unique in many facets. One of the most direct differences, especially with respect to HIPAA is that our care providers is the fact that our agency is out and about in the community and rendering services in our member’s homes.

III. Because of this, protecting information requires even more diligence. It is important to remember that there are very severe civil and criminal punishments in place for HIPAA violations.

IV. Disclosures under HIPAA can only occur in one of the follow instances:

a. The member has authorized the disclosure and has received the HIPAA guidelines

b. The member has authorized this disclosure within their care circle and has signed off on the various entities allowed to communicate their protected health information (PHI).

c. The disclosure is solely related to the member receiving the information.

d. The disclosure is legally required.

V. If you, or a member under your care is concerned a HIPAA violation has occurred, please contact ownership immediately for resolution and compliance assurance.

VI. Because Meadowlark Home Care utilizes HIPAA compliant messaging and scheduling services, you must be extra diligent to not let any of this digital data slip into the wrong hands or become accessible to anyone not authorized to receive the disclosure.

Employee Signature

Definition of Terms and Expectations

Definition of Terms

NAME		
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MEADOWLARK HOME CARE TERMS

I. An excused call off is defined as a call off, for any reason, that occurs more than two hours before the time of the start of the shift.

II. An unexcused call off is defined as a call off, for any reason, that occurs less than two hours before the time of the start of the shift.

III. An employee is considered late for a shift if they are more than 15 minutes later than their scheduled start time arriving at a member's home.

IV. A no-call no-show is when an employee does not inform the office they are going to be late or absent from a visit prior to the start time of the visit. This is a serious infraction because members may not always be able to inform our office if a care provider is absent, and presents a serious safety and liability risk to all involved.

V. It is considered picking up a shift when a care provider agrees to work a shift less than a week in the future. This can be either for a call off, or for the expedient start of a new client with the agency.

VI. It is the responsibility of all care providers to keep their continuing education current. While Meadowlark Home Care often provides the resources necessary to fulfill this requirement, it is the responsibility of each employee to insure their compliance with regulations.

VII. At Meadowlark Home Care, our members are the reason we all remain employed. Making them happy and satisfied is our most important priority as a team. As a result, if you perform well enough to get a positive phone call from the member, their family, or case management team, we document and record it.

VIII. Because this is a fast paced industry, we rely on our care providers to get us proper visit documentation through the Axiscare app. You are expected to comply with EVV charting requirements and respond to requests for corrections in a timely manner.

Employee Signature

Probationary Period and Wage Memo

Probationary Period and Wage Memo

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PROBATIONARY PERIOD

I. At Meadowlark Home Care, new employees (caregivers, nurses and administrative staff) must complete a probationary period of 120 days before they are afforded certain rights in employment.

II. During the employee's probationary period, Meadowlark Home Care may terminate employment for any reason, with or without notice.

III. After completion of the probationary period, employees will be eligible for benefits provided by Meadowlark Home Care in accordance with their policies and procedures.

WAGE MEMORANDUM

I. Starting wages at Meadowlark Home Care are set and non-negotiable

II. Wage increases are at the discretion of management and given on a discretionary basis based on reimbursement rates and overall job performance

III. Administrative wages given on a salary basis will be determined on a case by case basis at the discretion of upper management and may be changed at any time.

IV. The terms of this agreement are non-negotiable and failure to agree will result in either termination of employment or revocation of any employment offers extended.

HOURLY PAY RATE

Default Pay Rate: Hourly 0.00000

I agree with the terms set forth in this agreement:
☐ Yes ☐ No

Employee Signature

Handbook

Employee Handbook

NAME		
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I. INTRODUCTION TO OUR COMPANY

Meadowlark Home Care Employees,

At Meadowlark, we have a strong commitment to integrity. We will succeed as a team by respecting others through honesty, understanding, and trust. We are committed to achieving high standards of business and personal ethical conduct, and believe that putting these principles into practice will merit the respect of one another, our members, other professionals, and the community that surrounds us.

It is the personal responsibility of each of us to know the policies of Meadowlark and uphold these high standards. We all will apply this in our job performance and conduct ourselves to the responsibilities held under each employee's scope. As a team, we will all avoid any action, relationship, or situation that could jeopardize or impair the integrity at Meadowlark Home Care, the members, or each other.

Our dedication and commitment requires active participation from everyone at Meadowlark, including administrative personnel, members, and care providers. The attached Code of Business Conduct is our way of bringing our ethical views into the business to achieve success. We will not tolerate any retaliation of any kind, and it will result in disciplinary action against the employee. Always err on the side of caution and ask if you have any questions regarding a policy or misunderstanding.

These policies are a guidance to helping us all succeed, but your professionalism and independence will make this a happy, healthy, work environment.

Our mission, and our ability to enrich lives are the foundation we will need to serve our community with the passion, courage, and partnership necessary.

Natalie Redman & Corey Merrill
Co-Owners

II. MAINTAINING BOUNDARIES WITH MEMBERS

The nature of home health care is often conducive to building very strong personal connections between members and care providers. It is important to remember however, that maintaining professionalism with compassion is our overall goal. We are all tasked with our share of responsibility in this matter. There are guidelines for providing services, and it is very important to us at Meadowlark Home Care that we stay within these guidelines at all times.

Giving your personal phone number to members opens you up to being relied upon during your non-work hours to care for members in the way you do during your scheduled shifts. While this can seem compassionate and friendly, it sets a standard for that member that is neither sustainable nor desirable.

In addition, there should be no financial transactions (gifts or otherwise) between you and the client. No borrowing or lending money is allowed, as this can be seen as exploitation. The relationship between member and caregiver may also deteriorate if these financial transactions become expected.

Breaking the guidelines for providing services either under the state or waiver programs also has a similar effect. If a member consistently relies on you for services not directly authorized, they will come to expect you to cross the line and when you do refuse, it causes a rift that impacts you and our members negatively.

We at Meadowlark Home Care rely on our front line care providers to uphold these ideals and be an extension of the morals and ethics of the entire company. If you ever have questions related to boundary issues, feel free to open up a dialogue with management and discuss issues in order to get resolution.

III. CONFIDENTIALITY

Care providers are a very large part of a member's life. Often times, you will learn more about the member than most other people in their lives. Because of this, we must respect the privacy and confidentiality of our members to the highest degree of discretion.

HIPAA regulates how personal health information can and cannot be disclosed. You have also been given a copy of these guidelines to refer to whenever you have a question. In general, it is good practice to not communicate with anyone about a member unless it's a member of management at Meadowlark Home Care.

IV. AVOIDING DISCRIMINATION AND HARASSMENT

At Meadowlark Home Care we believe very strongly that everyone has a right to be free from discrimination or harassment. This includes our members, care providers and administrative staff.

Maintaining boundaries and acting with professionalism at all times is required. This will not only insure that you are not discriminating, but it will protect you from discrimination and harassment from the members. If they view you as a professional, and you treat them with respect, they should do the same.

If you ever have concerns that you may be experiencing discrimination or harassment with no options for a civil resolution, contact management/ownership immediately.

V. WORK HOURS AND SCHEDULES

At Meadowlark Home Care, we schedule within your availability based on the preferences of our members. Because of this there may be times where things change on short notice. Cancellations are an inevitable part of home health care due to the nature of the industry.

It is always important to remember that the availability you give us is our frame work, and when building new schedules or adding clients, we will move or add hours as necessary to get our members services. A good habit to get into is keeping in constant communication with management if things are changing in your availability or you have prior commitments that may prevent you from adding hours. If you schedule a doctor's appointment, have a baseball game for your kids, or anything else that encroaches on your normal availability, just shoot us a quick message so we know not to schedule you. If you are already scheduled for a shift, it is your responsibility to communicate with your coworkers and facilitate a trade or someone to pick your shift up prior.

Any hours picked up within a week are considered picked up shifts. These get marked on your performance review as a positive that will help increase your wage. Outside of a week, we may change or add to your schedule. When this occurs, we will send you a message directing you to check your schedule at Axiscare and let us know of any issues immediately.

VI. TIME OFF/LEAVE OF ABSENCE

At Meadowlark Home Care we appreciate that everyone needs a break and an occasional vacation. If you have a planned vacation, please submit the proper time off request in advance at least 30 days before you plan on being off. We approve/deny time off requests on a first come basis and at the discretion of management. For example, if one of our members has only three care providers and two of them request the same week off, the one entered first will be approved while the one submitted second will be denied. While just an example, it is the basis of our logic with time off requests. We must make sure our members are being taken care of and a care provider going on vacation will not result in a severe disruption of a member's services and lives.

We offer paid time off accrued at a rate of one hours paid off per forty hours worked during the first year of employment. Each year, this accrual goes up by 15 mins per hour worked. So in your second year of employment (excluding probationary period), you will accrue 1.25 hrs per 40 hrs worked. The third year you will accrue 1.5 hours per 40 hours worked, etc. The max accrual is 2 hours per 40 hours worked (which equates to about 2 weeks paid time off for full time employees). You must specify if you would like to use your paid time off to cover your vacation with a specific number of hours. In addition, we cap the accrual at 80 hrs of paid time off. Meaning that once you hit this number, you no longer earn additional paid time off and must use some of this time off to continue earning more. Cash outs for PTO at the discretion of management given the situation and are only given under certain circumstances.

If you must take a leave of absence for any reason, we understand. Sometimes things come up outside of your control that must be handled. If your leave is covered under FMLA, you are afforded certain rights upon return to work. If not a circumstance covered by the FMLA, we will do everything in our power to assure a smooth transition back to work when you do return.

VII. ATTENDANCE POLICY

While we understand that illnesses and unforeseen circumstances can cause you to need to miss work, reliability and consistency are absolutely necessary in this business. Because of this, we incentivize good attendance by building it directly into your performance review which determines the amount of your wage increase. Excessive call offs (3 or more over a 3 month period) may be dealt with by disciplinary action at the discretion of management.

We feel we have to be very strict on attendance because call offs and no call no shows are incredibly dangerous for our members and detrimental to the business as a whole. They rely on our services and we rely on our care providers. As such, we hold each and every one of you to a high standard in this regard.

If an illness or circumstance causes you to miss more than one day of work, any documentation associated with the event/illness is helpful to us. This information will be held in strict confidence, but having documentation to back up reasons for missing work help us in deciding how best to deal with the situation.

VIII. DRESS CODE AND APPROPRIATE CONDUCT

At Meadowlark Home Care, we do not wish to micro-manage what our caregivers and nurses wear in the field. With that being said, we also recognize the need for safety in the work environment given the nature of the industry. Because of this, shoes must be closed-toe and absent heels. In addition, comfortable, loose-fitting clothing that does not restrict movement is advised. While scrubs are not required, they can be very appropriate in certain higher needs settings and is left to your discretion. Also, we ask that you keep in mind that you are often treated as you present yourself, and we advise you strive daily to present a professional health care provider.

Along these lines, we expect nothing but the highest standards of conduct from our care providers both in the field and when dealing with our administrative staff. Always treating others with respect and dignity are requirements we do not take lightly.

IX. DISCIPLINARY ACTION

At Meadowlark Home Care, our goal is to prevent and deal with situations before they come to be problems requiring formal disciplinary action. If you feel you have done something improperly or not according to our standards, it is important to self-report and work the situation out with management before we have to hear it from our members or other care providers.

That being said serious or habitual infractions may require formal corrective actions up to and including termination. Examples of reasons for formal action include, but are not limited to; patient abuse, theft, fraud, habitual call offs, habitual tardiness, consistently poor job performance or inappropriate conduct towards members of our staff or clients.

If disciplinary action is required, we will have a formal meeting and discussion about the infraction and give you a chance to defend your position and communicate any grievances with the action. If termination is the result, employees will receive their final pay on the normal payday expected with the pay period of their final day in accordance with Montana state law.

X. EMAIL/SCHEDULING/PAYROLL INFORMATION

One of the many benefits of working at Meadowlark Home Care is our dedication to remain as technologically advanced as the industry allows. Because of this, we felt it very important to give each of our care providers their own Qliq messaging service in order for more effective, efficient and documented communication. In addition, our scheduling system allows you to log in remotely and view your schedule and client information from any internet enabled device. Also, our payroll system is fully online allowing you to view/print pay stubs at any time.

MESSAGING

We utilize qliqsoft for our core messaging service within the agency. Qliq is HIPAA compliant and most communication will occur on this application. When you are hired, you will receive a welcome email with instructions on how to activate and login to your qliq account. When you get the application (iPhone or Android), you will just need to use your email as your username and the password that was provided in the welcome email from Qliq. If you forget your password and need to reset your account, go to <http://www.qliqsoft.com> and click forgot password and retrieve it with your email. Qliq communication is mandatory for employment with us unless there is a special exemption of circumstances.

Within qliq there are group and broadcast message capabilities. We ask that if you're looking for coverage for shifts you send out broadcast messages to your caregiver group asking for coverage. Qliq has the capability to respond to only a single participant in the broadcast thread if a co-worker responds able to help.

Since Qliq is our core communication application, we ask that you keep your presence as online whenever possible so important information can be relayed about your employment or upcoming shifts.

SCHEDULING

We use axiscare for our scheduling and client information software. The website can be accessed at <https://4170.axiscare.com>. There are also mobile apps for both apple and android operating systems. When you are brought on board, you can go to the website and click "activate account" to set your username and password. The server is always 4170. After you have activated your account, you can login to the mobile app with the information you set up. Inside the mobile app, information about your schedule can be accessed. In addition, you can access all of the client information (address, phone number, etc). This is also where you view the ADLs and tasks to be accomplished on a particular visit. Viewing this information is very important to properly chart your visits.

PAYROLL

We use ADP for our payroll processing service. When you are brought in for your hire paperwork you will be entered into the payroll system with all your relevant information. If you would like electronic access to your payroll information, let your manager know and they will send you a personal registration code to set up the application and website access.

In order to get paid on time with the defined payroll schedule, you must complete your visit documentation within the axiscare at the time of service. Any issues with electronic documentation must be reported to management immediately. In addition, you are required to respond to requests for electronic charting corrections in a timely manner.

CONTACT RESOURCE LIST

- Main Office
 - o (406)926-3447
 - o Fax: (406)926-1501
- Corey Merrill (CEO/Co-Owner)
 - o Cell: (406)926-9191
 - o Email: cmerrill@meadowlarkhomecare.com
- Natalie Redman (President/Co-Owner)
 - o Cell: (406)239-8777
 - o Email: nredman@meadowlarkhomecare.com
- Workman's Compensation
 - o Office: (406) 495-5000

I acknowledge I have received and will comply with the terms and conditions provided within this handbook.

☐ Yes ☐ No

Employee Signature

Payroll Information

Employee Information for Payroll

NAME

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ADDRESS

Mailing/Billing Address (line 1) 2986 Grassland Dr.		
Mailing/Billing Address (line 2)		
Mailing/Billing City Missoula	Mailing/Billing State Montana	Mailing/Billing Zip Code 59808
E-mail nredman@meadowlarkhomecare.com		

ADDITIONAL PERSONAL INFORMATION

Driver License Number	DL Expire Date Mon Day Year
Driver License State Montana	Birth Date Aug 14 1979 (Age 47)
Social Security Number	

FEDERAL FILING STATUS

Federal Filing Status

EXEMPTIONS CLAIMED

Exemptions

DIRECT DEPOSIT INFORMATION

Routing Number
Account Number
Account Type

I certify the information provided is accurate.
☐ Yes ☐ No

Employee Signature

Supervisor
